

INSTRUCTIONS FOR FEE DEFERRAL OR WAIVER APPLICATION & DECLARATION

Fees and costs are required in most civil cases. A list of fees is available at www.courts.oregon.gov or from the court clerk. You may ask the court to defer or waive those fees and costs. The court can only defer or waive fees if you are low-income (according to federal poverty guidelines). Any deferral or waiver granted is valid only for the specified fees and only for the case number on your application.

Complete the *Application for Deferral or Waiver of Fees & Declaration in Support*, as well as an *Order Regarding Deferral or Waiver of Fees*. Complete the information about the case and the fee you want deferred or waived on the *Order* but DO NOT mark anything below “The court finds Applicant:” Be sure to fill in the county name at the top of the page.

The **case heading** must be the same as on the papers you filed or received in the case you’re filing in (party names and case number if available)

The *Application and Declaration* form is confidential – only the court can see it

ADULTS IN CUSTODY: If you are filing a case against a public body (see [ORS 30.642](#)), you must attach your trust account statement to the *Application*. The statement must show all activity for 6 months prior to your filing.

The court may do one of four things:

- 1) Order your fees **waived**. You do not have to pay the fee unless the court makes a different order later in the case.
- 2) Order you to pay the fees but **defer when payment is due**. You may be placed on a payment plan. Additional costs for administration and collection may be added to your fee amount.
- 3) **Postpone ruling on your application**. The court will not put you on a payment plan and will not add additional costs. The court will review your case information at a later date and at that time may deny your application, waive your fee, or order you to pay the fee but defer when payment is due. If payment is ordered but deferred, the court may place you on a payment plan with additional costs and fees added for administration and collection.
- 4) **Deny** your application and order you to pay the fees

A judgment against you will be entered for any fees you are ordered to pay. The judgment will be on behalf of the State of Oregon and may include additional costs and fees.

At the end of your case, the court may review any earlier rulings regarding fees and make changes based on your status at the time and the result of the case.

You will receive a *Notice of Entry of Judgment* that will include the total amount due

Fees are payable to the State of Oregon, but payment must be made to the circuit court where your case was filed. The court accepts cash, credit and debit cards, and money orders or checks made out to the State of Oregon.